

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
March 26, 2026  
8:30 a.m./1:30 p.m.

**18. KEVIN WENTWORTH V. CHEYENNE FULLER**

**25FL1247**

Petitioner filed a Request for Order (RFO) on December 29, 2025, seeking child custody and parenting plan orders, as well as an order for the child to obtain a passport. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 28, 2026, and a review hearing on March 26, 2026. Proof of Service shows Respondent was served with the FL-300 and a blank FL-320. However, there is no Proof of Service showing Respondent was served with the CCRC referral and other necessary forms.

Both parties attended CCRC and could not reach any agreements. A report with recommendations was filed with the court on March 4, 2026. Copies were mailed to the parties on March 5, 2026.

Petitioner filed a Declaration on December 29, 2025. There is no Proof of Service for this document, therefore, the court has not considered it.

Respondent has not filed a Responsive Declaration.

The court finds good cause to proceed, despite the defects in service, as Respondent appeared at CCRC and was served timely with the RFO and blank Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the CCRC report are in the best interest of the minor. The court adopts the recommendations as set forth in the March 4<sup>th</sup> CCRC report. As to Petitioner's request for the minor to obtain a passport, the court has ordered joint legal custody. As such, the parties must both sign the application for the passport. The court is directing the parties to work cooperatively to obtain a passport for the minor.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #18: THE COURT FINDS GOOD CAUSE TO PROCEED, DESPITE THE DEFECTS IN SERVICE, AS RESPONDENT APPEARED AT CCRC AND WAS SERVED TIMELY WITH THE RFO AND BLANK RESPONSIVE DECLARATION. THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE CCRC REPORT ARE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH IN THE MARCH 4<sup>TH</sup> CCRC REPORT. AS TO PETITIONER'S REQUEST FOR THE**

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**MINOR TO OBTAIN A PASSPORT, THE COURT HAS ORDERED JOINT LEGAL CUSTODY. AS SUCH, THE PARTIES MUST BOTH SIGN THE APPLICATION FOR THE PASSPORT. THE COURT IS DIRECTING THE PARTIES TO WORK COOPERATIVELY TO OBTAIN A PASSPORT FOR THE MINOR.**

**PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

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**19. RUBEN WILBURN V. HEATHER VOGEL**

**24FL0197**

Petitioner filed a Request for Order (RFO) on August 18, 2025, seeking a modification of the current parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on September 18, 2025, and a review hearing on November 6, 2025. Respondent was personally served on August 25, 2025.

Both parties appeared at CCRC and reached a full agreement. The parties submitted a stipulation to the court on September 24, 2025. The court signed and adopted the parties' stipulation as its order on September 24<sup>th</sup>. The stipulation set a further review hearing for March 26, 2026, at 1:30 PM in Department 5.

Neither party has filed a Supplemental Declaration. The court finds the prior orders continue to be in the best interest of the minor. All prior orders remain in effect. The matter is dropped from calendar.

**TENTATIVE RULING #19: ALL PRIOR ORDERS REMAIN IN EFFECT. AS NEITHER PARTY FILED A SUPPLEMENTAL DECLARATION, THE MATTER IS DROPPED FROM CALENDAR.**

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